

November 1, 2005



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 10298
(TWELFTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain liquid fuels, Class 3 materials, contained in non-DOT specification packaging seal drums or rollagons of up to 500 gallon capacity by cargo aircraft to remote locations within the state of Alaska and Bronson Creek, British Columbia, Canada. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Column (8C); § 173.241; § 173.242 and § 175.320(a) in that non-DOT specification packaging is not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Air Logistics of Alaska, Inc. dated June 1, 2005, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Fuel, aviation, turbine engine	3	UN1863	II, III
Fuel Oil, (No. 1, 2, 4, 5 or 6)	3	NA1993	III
Gasoline	3	UN1203	II

7. SAFETY CONTROL MEASURES:

a. The prescribed packaging is a non-DOT specification collapsible, rubber, packaging with a capacity of 250 to 500 gallons. The tank will be secured for transport to a plywood base, as described within the application. The package is capable of being rolled or fork lifted, and is designed, constructed and tested to U.S. MIL. SPEC. MIL-D-23119. Each packaging is pressure tested to 30 psig, designed and tested to 8 G loading conditions, and is capable of withstanding successive free fall drops from 4 meters and temperatures from -30°F to 165°F, as documented within the brochure included with the application.

b. The packaging described in this special permit is authorized for use only for fuel shipments within and to remote access areas in Alaska and Bronson Creek, B.C., Canada where the runway sizes prohibit large aircraft with installed tanks and there is no other practical alternative to air shipments of these portable tanks.

8. SPECIAL PROVISIONS:

a. The package must bear the **CARGO AIRCRAFT ONLY** label as described in § 172.448.

b. MARKING - The packaging described in paragraph 7 above must be marked "DOT-SP 10298" in letters at least two inches high on a contrasting background.

c. This special permit authorizes the transportation of hazardous materials listed in paragraph 6 in aircraft within the United States. This special permit does not grant authority to use Canadian or foreign controlled airspace or airports outside the United States.

Packagings permanently marked 'DOT-E 10298', prior to November 1, 2005 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after November 1, 2005 must be marked 'DOT-SP 10298'.

Shipping papers displaying 'DOT-E 10298' may continue to be used until November 1, 2006, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo aircraft only.

10. MODAL REQUIREMENTS:

A current copy of this special permit must be carried aboard each cargo aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

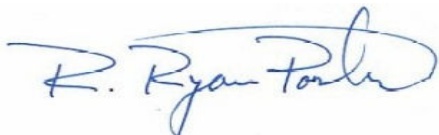
Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln